

Bihar Inter-State Tourist Vehicles Rules, 1969

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State of Bihar - Act

Bihar Inter-State Tourist Vehicles Rules, 1969

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Bihar Inter-State Tourist Vehicles Rules, 1969

Rule BIHAR-INTER-STATE-TOURIST-VEHICLES-RULES-1969 of 1969

Published on 17 July 1969

Commenced on 17 July 1969

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Bihar Inter-State Tourist Vehicles Rules, 1969

Published vide Notification No. GSR 50, dated 17th July, 1969

1.

Short title.

- These Rules may be called the Bihar Inter-State Tourist Vehicles Rules, 1969.

2.

Definitions.

- In these Rules, unless the context otherwise requires, -

(a)

"Permit" means a permit issued under Section 51 of the Motor Vehicles Act, 1939 (IV of 1939);

(b)

"Schedule" means a schedule annexed to these Rules;

(c)

"State" includes Union Territory;

(d)

"Tourist motor cab" means a motor or cab on the permit relating to which an endorsement is made by the State Transport Authority of the State in which such permit is granted, to the effect that it is a tourist motor cab;

(e)

"Tourist omnibus" means an omnibus on the permit relating to which an endorsement is made, by the State Transport Authority of the State in which such permit is granted, to the effect that it is a tourist omnibus;

(f)

"Tourist vehicles" means a tourist motor cab or a tourist omnibus.

3.

Endorsement of permits of vehicles.

(1)

The State Transport Authority may, in accordance with the provisions of this Rule, make an endorsement on any permit in the State in relation to any motor cab or omnibus to the effect that the vehicle to which the permit relates is an All India tourist vehicle:

Provided that at no time shall the total number of -

(i)

motor cabs in respect of which such endorsement are in force shall exceed fifty; and

(ii)

omnibuses in respect of which such endorsements are in force shall exceed ten.

(2)

Any person who holds a permit issued in the State in relation to a motor cab or an omnibus may apply in the form specified in Schedule I to the State Transport Authority for an endorsement on the permit to the effect that the vehicles to which the permit relates is a tourist vehicle.

(3)

An application under sub-rule (2) shall be accompanied by a fee of Rs. 100 for endorsement on tourist omnibus permit and Rs. 5.0 for endorsement on tourist motor cab permit and shall be made not less than six weeks before the date on which it is desired that the endorsement shall take effect or, if the State Transport Authority appoints a date for the receipt of such applications on such date.

(4)

On receipt of an application under sub-rule (2), the State Transport Authority shall make the application available for inspection at the office of that authority and shall publish the application or the substance thereof in the Official Gazette together with a notice of the date before which representations in connection therewith may be submitted:

(i)

any person who holds a permit on which an endorsement has been made under this Rule; and

(ii)

any local or police authority in the State, and the date, not being less than thirty days from such publications, on or after which the application and any representations received will be considered:

Provided that, if the making of any endorsement in accordance with the application would have the effect of increasing the number of vehicles bearing such endorsements beyond the limits fixed in that behalf under the proviso to sub-rule (1) or if the vehicle in respect of which the application is made is registered more than one year before the date of the application, the State Transport Authority shall summarily reject the application without following the procedure laid down in this Rule.

(5)

No representation in connection with an application referred to in sub-rule (4) shall be considered by the State Transport Authority unless it is made in writing before the appointed date and unless a copy thereof is furnished simultaneously to the applicant by the person making such representation.

(6)

The State Transport Authority shall, having regard to the provisions of sub-rule (7) and the representations, if any made

under sub-rule (4) in relation to an application, consider the application and may either make the endorsement or refuse, for reasons to be recorded in writing, to make the endorsement.

(7)

In making or refusing to make an endorsement, the State Transport Authority shall have regard among other things to the suitability of the vehicle for tourist purposes and the interests of the public generally.

(8)

Any person aggrieved by the order of the State Transport Authority refusing to make an endorsement under sub-rule (6) may prefer an appeal, in the form of a memorandum signed by the appellant, to the Appellate Authority notified under Rule 70 of the Bihar Motor Vehicle Rules, 1940, within fourteen days of receiving of such order. The memorandum shall be accompanied by a copy of the order appealed from and challan showing deposit of Rs. 100 as an appeal fee.

4.

Validity of endorsement and cancellation or suspension of endorsement.

(1)

An endorsement made on a permit under Rule 3 shall cease to be valid on the expiry of the period for which that permit has been granted.

(2)

If the State Transport Authority has reason to believe that a vehicle on the permit relating to which an endorsement has been made by it under Rule 3 -

(a)

has been, or is being used in contravention of the provisions of Rules 6, 7 and 8, and

(b)

being an omnibus, fails to comply with the requirements of sub-rules (3) and (4) of Rule 9 or has been, or is being, used in contravention of the provisions of sub-rule (1) and (2) of that Rule;

the authority may, after giving the holder of the permit an opportunity to be heard, either suspend the endorsement for such period as it may think fit or cancel the endorsement.

(3)

any person aggrieved by the order of the State Transport Authority under sub-rule (2) may prefer an appeal in the form of a memorandum signed by the appellant, to the Appellate Authority as specified in sub-rule (8) of Rule 3 within fourteen days of the receiving of such order. The memorandum shall be in duplicate and accompanied by a copy of the order appealed from and challan showing deposit of Rs. 100 as an appeal fee.

5.

Information of endorsements to be sent to other State Transport Authorities.

(1)

Where an endorsement is made by the State Transport Authority under Rule 3, that authority shall forward to each of the State Transport Authorities in the other State information relating to the endorsement and the vehicles to which the endorsement relates in the Form specified in Schedule II.

(2)

Where an endorsement is suspended or cancelled by the State Transport Authority under sub-rule (2) of Rule 4, that authority shall forward to each of the State Transport Authorities in the other States -

(i)

information relating to the suspension or cancellation in the Form specified in Schedule 3; and

(ii)

where an appeal has been preferred against such suspension or cancellation, a copy of the decision in such appeal.

(3)

The State Transport Authority shall also forward, at intervals of three months, a statement in the Form specified in Schedule IV giving classified information in regard to the endorsements made by that Authority under Rule 3 which are valid on the date of the statement.

6.

Fares.

- The rates of fare in respect of tourist vehicles will be -

(i)

Large size tourist car (22 H.R. and above).

Re. 0.80 per km. for roads in and plains Re. 0.15 per km.

extra for air-conditioned cars if the air conditioning suit is made to work, Re. 0.95 per km. for roads in the ghats and/or hills.

(ii)

Medium size tourist car (about 14 H. P. but less than 22 H.

P.)

Re. 0.65 per km. for roads in the plains and Re. 0.80 per km.

for roads in the ghats and/or hills.

7.

Special Rules for drivers and conductors of tourist vehicles.

(1)

The drivers of a tourist vehicle shall -

(a)

wear a khaki or a white uniform consisting of long trousers and a bush shirt or coat having two pockets, with the letter T sewn on the left-hand pockets of the bush shirt or coat;

(b)

possess at least an elementary knowledge of the mechanism and maintenance of the vehicle he drives;

(c)

have a working knowledge of Hindi and English:

Provided that where the driver is accompanied by a conductor having a working knowledge of either or both the languages, it shall not be necessary for the driver to possess a working knowledge of that language or, as the case may be, of those languages.

(2)

The conductor, if any, of a tourist vehicle shall wear the same uniform as a driver is required to wear under sub-rule (1).

8.

Special Rules as to painting and making of tourist vehicles.

- The tourist vehicles shall prominently display on it the letter "T" and the serial number allotted by the authority making the endorsement on the permit relating to the vehicle shall be painted on the front fender of the tourist vehicle. The letter and the numerals shall be painted on a white surface enclosed by a circle drawn in red and shall not be less than 5 cms. in height and 4 cms. in breadth.

9.

Special Rules as to tourist omnibus.

(1)

Every tourist omnibus shall have a conductor.

(2)

No tourist vehicle shall carry more than twenty-nine persons excluding the driver and conductor:

Provided that this restriction shall not apply to a specially built tourist omnibus to carry sight-seeing groups of tourists ranging from 40 to 50 persons.

(3)

A tourist omnibus shall be constructed so as to provide for gangway, seating space, seats, head-room or internal height, driver's seat, urinal, etc., in accordance with the specifications given in Schedule V.

(4)

The following amenities shall be provided in a tourist bus, namely:

(a)

radio;

(b)

Loudspeaker;

(c)

reading material such as newspapers, periodicals, etc., and

(d)

arrangements for supply of drinking water.

10.

Countersignature not necessary in respect of tourist vehicles belonging to other States.

- Subject to the provisions of Rules, 6, 7, 8 and 9, a permit granted in relation to any tourist motor cab or a tourist omnibus in any other State shall be valid in the State without countersignature, if there are in force in that other State Rules similar to these Rules.

I

[See Rule 8 (2)]

Application for the grant of endorsement on the permit of a motor cab omnibus for country wide operation under the Bihar Inter-State Tourist Vehicles Rules, 1969.

I/we the undersigned apply for endorsements on the following permit for country wide operation -

(1)

Description of permit.....

(2)

(i)

Number of permit and the date of issue.....

(ii)

Date of expiry.....

(iii)

Particulars of vehicle (s).....

(1)

Make of the vehicle.....

(2)

Year of manufacture

(3)

(a)

Year of registration.....

(b)

Registration No.

(4)

Type of body.....

(5)

Number of cylinders.....

(6)

Horse power.....

(7)

Chassis number.....

(8)

Engine number.....

(9)

Seating capacity.....

(10)

Laden weight.....

(11)

Unladen weight.....

(12)

Colour of body.....

(13)

Date of grant of permit.....

(14)

Date of the grant of endorsement.....

(15)

Date on which the permit or the endorsement will expire.....

2. I/We declare to fulfil/abide by the conditions laid down in the Bihar Inter-State Tourist Vehicles Rules, 1969.

3. This is with reference to the circular, dated.....inviting application for the endorsement.

N. B. - Strike out the portion that is not applicable.

Signature or thumb-impression of Applicant(s)

To be filled in the office of the Transport Authority

(1)

Date of receipt

(2)

Date of publication

(3)

Date or dates of hearing of objections

(4)

Granted subject to the Bihar Inter-State Tourist Vehicles Rules, 1969. Granted in modified form on the day of 1969 subject to the Bihar Inter-State Tourist Vehicles Rules, 1969. The serial number allotted to the vehicle is.....

Secretary, State Transport Authority, Bihar

Rejected

II

[See Rule 5(1)]

Intimation to the State Transport Authorities in other States regarding grant of endorsement on the permit of a vehicle under the Bihar Inter-State Tourist Vehicles Rules, 1969

To,

The State Transport Authority,

The permit relating to the following transport vehicles has been endorsed for operation as Tourist vehicle (s) under the Bihar Inter-State Tourist Vehicles Rules, 1969.

Serial No.

Serial no. allotted to the vehicle

Type of the vehicle

Year of manufacture

Year of registration and Registration no.

Type of body

No. of cylinders

1

2

3

4

5

6

7

Horse Power

Chassis No.

Engine No.

Seating capacity

Laden weight

Unladen weight

Colour of body

8

9

10

11
12
13
14

Secretary,
State Transport Authority, Bihar

III

[See Rule 5 (2)]

Intimation to the State Transport Authorities in other States regarding suspension and cancellation of endorsement on the permit of tourist vehicle(s) under the Bihar Inter State-Tourist Vehicles, Rules, 1969

To,

The State Transport Authority,.....

The endorsement granted on permit no. in respect of tourist vehicle bearing serial number registered in the name of..... and communicated to you under this Authority's letter no..... dated.....has been suspended/cancelled with effect from..... day of19. under Rule 4 (2) of the Bihar Inter-State Tourist Vehicles, Rules, 1969.

Secretary,
State Transport Authority, Bihar

IV

[See Rule 5(3)]

Intimation to the State Transport Authorities in other States regarding grant of endorsement on the permits relating to the vehicles during the quarter ending (year).....

To,

The State Transport Authority,.....

The permits relating to the Motor Vehicles particulars of which are given below bear valid endorsements for operation as tourist vehicles on.....

Number

Serial no. allotted to vehicle(s)

Class of (vehicle motor cab)

Make, Model and year of manufacture

Registration no.

Permit no.

Date of expiry of permit

1
2
3
4
5
6
7

Secretary,
State Transport Authority, Bihar

V

[See Rule 9 6)]

As required by Rule 9(3) of the Bihar Inter-State Tourist Vehicles Rules, 1969, a tourist vehicle (omnibus) shall be so constructed as to provide for the following. Reasonable variations may be allowed on the written order of the State Government.

(1)

Gangway. - The minimum gangway width shall be 30 cms. and it should cover in length from the rear end to bulk-head.

(2)

Seating capacity size and specification of seats. - Number of seats shall be twenty- four excluding the driver and

conductor. Each seat shall be provided with rubber cushion of 7.5 c.m. thickness, back rest of 42.5 cm. width and of 72. cm. height, with moulded head rests. The seat shall be adjustable, manually controlled with a hand or feet lever and capable of moving forward and backward over a minimum horizontal length of 20 cm. Leg spacing between two seats shall not be less than 30 cm. The minimum seating area per seat shall be 42.8 cm. square and seat thickness shall be not less than 10 cm.

(3)

Internal height. - Internal height shall be 180 cm., measured between the top of the floor to the centre line of the ceiling.

(4)

Drivers' seat. - The driver's seat shall be adjustable, capable of forward, up and down adjustment. It should have a minimum seating area of 4.25 cm. x 37.5 cm. The seat frame shall be made out of tubular frame of not less than 16 gauge thickness, internal diameter of 2.5 cm. The seat shall be made of properly added 10 cm. thick rubber cushions and provided with an inclined back rest with a height of 50 cm. and a width of 42.5 cm. padded with a 5 cm. thick rubber cavity sheet.

The driver's cabin shall be separated from the rest of the bus by a sound proof partition to avoid diversion of the driver's attention by the radio. The partition shall be provided with an emergency door of the size of 115 cm. x 50 cm. and 3 safety glasses of 2" thickness for front vision. The partition shall also be provided with suitable curtains to avoid the glare of inside lights which may affect the driver's visibility during night driving. The partition shall also be provided with suitable air ducts, with manually operated regulators for allowing the passage of fresh air from the front side.

(5)

Toilet (Urinals). - There shall be a toilet compartment covering minimum area of 90 cm x 110 cm. located in the extreme off side rear corner of the bus which shall be provided with an air-tight collapsible door, a wash basin connected to an over-head water tank, closet seat looking glass, towel rack, coat hangers, liquid soap container and chemical deodorizers. The toilet shall also be provided with suitable ventilation so as to discharge foul air. The toilet door shall be provided with suitable locking handles and electric signal indicating when the toilet is in use. There shall be a light switch to provide light in the toilet.

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